

July 27, 2026
Dept. 9
Probate Tentative Rulings

8.	26PR0173	IN THE MATTER OF TANYA HIBBARD
PETITION FOR ORDER CONFIRMING REAL PROPERTY		

On June 9, 2026, Petitioner, Tayna Hibbard, Trustee of the Janne Hibbard Living Trust dated June 5, 2025 ("Petitioner" or "Trustee"), filed a Petition Under Probate Code Sections 850 and 17200 for Order Confirming Real Property as Trust Property; Memorandum of Points and Authorities; Declaration of Tanya Hibbard. A Notice of Hearing was filed on June 25, 2026. No opposition has been received.

Petitioner requests the following relief:

1. Confirm the real property commonly known as 751 Meadowview Acres Road, Cool, California 95614, APN 071-461-041-000 is an asset of the Janne Hibbard Living Trust dated June 5, 2025;
2. Confirm that Tanya Hibbard, as Trustee of the Janne Hibbard Living Trust dated June 5, 2025, has authority to administer, manage, convey, sell, refinance, encumber, lease, distribute, and otherwise deal with the Property as Trust property; and
3. Authorize any title company, escrow holder, county recorder, assessor, governmental agency, financial institution, and third party to rely on the Court's order as confirming that the Property is Trust property.

On June 5, 2025, Janne Hibbard ("Settlor") established the Janne Hibbard Living Trust by written trust agreement. The trust provides that title to assets should be taken in the following form: "Janne Hibbard, Trustee of the Janne Hibbard Living Trust, dated June 5, 2025, and any amendments thereto."

The trust agreement states that by execution of the agreement, Settlor transferred, conveyed, and assigned to her Trustee the trust property described on Schedule A, and that the Trustee accepted and agreed to hold such property under the terms of the trust agreement. Schedule A to the trust agreement identifies the trust property as: "All real and personal property in my possession." Exhibit E.

On September 28, 2025, the Trust became irrevocable upon the death of Settlor.

The real property at issue is commonly known as 4751 Meadowview Acres Road, Cool, California 95614 (the "Property"), APN: 71-460-41-000. Petitioner is informed and believes that Settlor owned the Property during her lifetime and intended the Property to be held and administered as an asset of the Trust. This was evidenced by Settlor executing a grant deed to transfer the property, which was recorded. Exhibit A. However, the legal description was incomplete due to a scrivener's error relying on two deeds that were of record. Exhibits B and C.

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Additionally, the Certification of Trust executed by Settlor before her death states that the Trust holds the real property located at 4751 Meadowview Acres Road, Cool, California.

Due to the scrivener's error, title records do not clearly and correctly reflect that the Property is held in the name of the Trust.

The correct legal description of the Property is:

Parcel One:

Lot 58, as shown on that certain Map entitled "Meadowview Acres Unit No. 1, a Rural Subdivision", filed in the office of the County Recorder of said County on September 3, 1985, in Map Book G, at page 27 and as amended January 29, 1986 in Map Book "G" at page 34. Excepting Therefrom: All that portion of Lot 58 of that certain Subdivision Map entitled "Amended Meadowview Acres Unit 1" filed in Book G of Maps at Page 34 in the County Recorder's Office, County of El Dorado, State of California, being a portion of Sections 29 and 30, Township 12 North, Range 9 East, M.D.M. , more particularly described as follows: Beginning at the Southwest corner of said Lot 58, being in the centerline of a creek; thence North 35 deg 55' 19" West, 192.94 feet along the West line of said Lot 58; thence leaving said west line North 59 deg 47' 00" East, 38.08 feet to a 3/4 inch capped iron pipe stamped L.S. 4663; thence South 30 deg 13' 00" East, 196.92 feet to a point on the South line of said Lot 58; thence along said South line South 74 deg 24' 36" West, 19.53 feet to the Southwest corner of said Lot 58 and the Point of Beginning.

Parcel Two:

All that portion of Lot 59 of that certain Subdivision Map entitled "Amended Meadowview acres Unit 1" filed in Book G of Maps at Page 34 in the County Recorder's Office, County of El Dorado, State of California, being a portion of Sections 29 and 30, Township 12 North, Range 9 East, M.D.M. , more particularly described as follows:

Beginning at a point on the Easterly line of said Lot 59 from which the Southeast corner of said Lot 59 bears South 35 deg 55' 19" East, 192.94 feet; thence along said Easterly line North 35 deg 55' 19" West, 214.84 feet to the Northeasterly corner of said Lot 59; thence along the Northerly line of said Lot 59 South 65 deg 14' 48" West, 52.50 feet; thence leaving said Northerly line South 48 deg 48' 55" East, 230.83 feet to the Point of Beginning.

APN: 071-461-041-000

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Probate Code § 850 permits a trustee who has a claim to property, the title to or possession of which is held by another, to file a petition requesting that the court make an order pursuant to Probate Code § 856 authorizing and directing the person having title to or possession of real property to execute a conveyance or transfer to a person entitled thereto, or granting other appropriate relief.

Probate Code § 851 requires the Petitioner to serve notice of the hearing and a copy of the Petition at least 30 days prior to the hearing to each person claiming an interest in or having title to or possession of the property. When the matter concerns a decedent estate, notice shall also be given to any heir or devisee whose interest may be affected by the Petition in accordance with Probate Code § 1200.

Probate Code § 857 provides that in the event that the court issues such an Order:

(a) The order is prima facie evidence of the correctness of the proceedings and of the authority of the personal representative or other fiduciary or other person to make the conveyance or transfer.

(b) After entry of an order that the personal representative, other fiduciary, or other person execute a conveyance or transfer, the person entitled thereunder has the right to the possession of the property, and the right to hold the property, according to the terms of the order as if the property had been conveyed or transferred in accordance with the terms of the order.

Notice of the hearing and a copy of the Petition were mailed at least 30 days prior to the hearing, to each person claiming an interest in or having title to or possession of the property, as well as any heir or devisee whose interest may be affected by the Petition.

Pursuant to Probate Code §850 and *Estate of Heggstad* (1993) 16 Cal.App. 4th 943, 947-950, the Court finds sufficient evidence that decedent intended the above-mentioned asset be part of the Trust.

TENTATIVE RULING #8:

ABSENT OBJECTION THE PETITION IS GRANTED AS REQUESTED. ANY PERSON WHO HAS AN OBJECTION MAY MAKE IT ANY TIME, EVEN ORALLY AT THE HEARING (PROBATE CODE § 1043).

IF A PARTY OR PARTIES WISH TO APPEAR REMOTELY, INSTRUCTIONS FOR REMOTE APPEARANCES CAN BE FOUND ON THE COURT'S WEBSITE.